

CCRB INVESTIGATIVE RECOMMENDATION

Investigator: Lesley Henry	Team: Team # 3	CCRB Case #: 201114160	☒ Force	☒ Discourt.	☐ U.S.
			☒ Abuse	☐ O.L.	☒ Injury
Incident Date(s) Tuesday, 10/19/2010 12:00 AM, Friday, 11/19/2010 7:38 PM	Location of Incident: § 87(2)(b)	Precinct: 52	18 Mo. SOL 5/19/2012	EO SOL 5/19/2012	
Date/Time CV Reported Wed, 10/26/2011 11:53 AM	CV Reported At: IAB	How CV Reported: Phone	Date/Time Received at CCRB Tue, 11/01/2011 11:16 AM		

Complainant/Victim	Type	Home Address
§ 87(2)(b)	§ 87(2)(b)	§ 87(2)(b)

Witness(es)	Home Address
§ 87(2)(b)	§ 87(2)(b)
§ 87(2)(b)	§ 87(2)(b)
§ 87(2)(b)	§ 87(2)(b)

Subject Officer(s)	Shield	TaxID	Command
1. POF Filastin Srour	23392	933550	052 PCT
2. POM Joel Medina	30430	935297	052 PCT

Witness Officer(s)	Shield No	Tax No	Cmd Name
1. POM Richard Baker	08831	939896	052 PCT
2. POF Latasha Carter	00489	941510	052 PCT
3. POM Reuben Antwi	25102	948300	052 PCT

Officer(s)	Allegation	Investigator Recommendation
A.POM Joel Medina	Abuse: PO Joel Medina entered § 87(2)(b) in the Bronx.	§ 87(2)(b)
B.POF Filastin Srour	Force: PO Filastin Srour used a chokehold against § 87(2)(b)	§ 87(2)(b)
C.POF Filastin Srour	Force: PO Filastin Srour used physical force against § 87(2)(b)	§ 87(2)(b)
D.POF Filastin Srour	Discourtesy: PO Filastin Srour spoke rudely to § 87(2)(b)	§ 87(2)(b)

Case Summary

On October 26, 2011, eleven months after the date of the incident, § 87(2)(b) called the Internal Affairs Bureau and filed a complaint, generating IAB log § 87(2)(b) (encl. 3). The complaint was forwarded to the CCRB on November 1, 2011, under IAB log § 87(2)(b).

On November 19, 2010, at 7:38 p.m., § 87(2)(b) was arrested by a group of officers at § 87(2)(b) in the Bronx. The following allegations resulted:

- **Allegation A – Abuse of Authority:** PO Joel Medina entered § 87(2)(b) in the Bronx § 87(2)(g)
- **Allegation B – Force:** PO Filastin Srour used a chokehold against § 87(2)(b) § 87(2)(g)
- **Allegation C – Force:** PO Filastin Srour used physical force against § 87(2)(b) § 87(2)(g)
- **Allegation D – Discourtesy:** PO Filastin Srour spoke rudely to § 87(2)(b) § 87(2)(g)

This case was originally assigned to Inv. Peter Hoy and it was reassigned to the undersigned investigator on September 26, 2012 § 87(2)(g)

Results of Investigation

Civilian Statement(s)

Complainant/Victim: § 87(2)(b)

- § 87(2)(b) § 87(2)(b) at the time of the incident, is a black female, 5'8" tall, 130 lbs., with brown hair and brown eyes. A § 87(2)(b)

Arrest Photograph

§ 87(2)(b)'s arrest photograph does not depict any apparent injuries to § 87(2)(b)'s face (encl. 10).

NYC Correctional Health Services Statement

On § 87(2)(b) § 87(2)(b) reported to § 87(2)(b) that on November 19, 2010, she was arrested following a physical altercation between herself, her boyfriend and another female after she caught her boyfriend and the female engaged in oral sex. There is no indication in the medical records that § 87(2)(b) reported she had been assaulted by police officers (encl. 6).

CCRB Testimony

On October 26, 2011, § 87(2)(b) filed a complaint with the Internal Affairs Bureau (encl. 3). On November 9, 2011, § 87(2)(b) provided a telephone statement to the CCRB (encl. 5).

On November 15, 2011, § 87(2)(b) was interviewed at the CCRB (encl. 7A-C) § 87(2)(g)

On November 19, 2010, at 7:38 p.m., § 87(2)(b) was home with her § 87(2)(b) daughter, § 87(2)(b), located at § 87(2)(b) in the Bronx. No other adult was present and § 87(2)(b) was not under the influence of drugs or alcohol at the time. Four officers, identified through investigation as Officers Filastin Srou, Richard Baker, Joel Medina and Latasha Carter, knocked on the door. § 87(2)(b) opened the door and PO Medina asked, “Are you okay?” § 87(2)(b) described PO Medina as a Hispanic male in his late thirties, with a medium build, between 5’6” and 5’7” tall, with a shaved bald head. § 87(2)(b) did not answer PO Medina, but instead asked, “What are you doing here?” One of the officers, whom she did not specify, explained they had received a call and asked if they could enter her apartment. § 87(2)(b) did not respond, and PO Medina placed his foot in the doorway and pushed the door open completely. PO Medina then pushed § 87(2)(b) with two hands and one elbow in her chest and ran into the apartment, past § 87(2)(b) towards the back of the apartment. PO Carter and PO Baker followed PO Medina. § 87(2)(b) described PO Carter and PO Baker respectively as a black female in her 30s, 5’6”-5’7” tall, with medium length hair and a white male in his 30s, slim, 6’2” tall, with brown hair. PO Srou entered and without provocation, she grabbed § 87(2)(b) by her neck with her right hand, temporarily restricting her breathing for a few seconds. § 87(2)(b) described PO Srou as a white female in her late 30s, 5’6” tall, with long hair. PO Srou then punched § 87(2)(b) multiple times in the right side and left side of her jaw and her left ear. § 87(2)(b) fell to the floor and hit her head on a column that separates the living room and foyer. § 87(2)(b) stated during her telephone statement that this action caused her to lose consciousness; however, she did not repeat or indicate that she lost consciousness during her sworn statement. § 87(2)(b) denied that she fought with the officer or hit her in any way. On the floor, PO Srou continued to hit § 87(2)(b) in the face, the back of the head, neck and back between 30 to 40 times. § 87(2)(b) sustained a lump on her right jaw, a scratch on the right side of her neck, bruising on her back, the back of her neck and shoulders, an injury to a disc in her back and a lump on her back. PO Srou pulled § 87(2)(b)s hands behind her back, but she did not handcuff her. § 87(2)(b) repeatedly asked PO Srou, “What’s going on?” PO Srou responded, “Shut the fuck up. I’ve got the fucking badge. I’ve got the fucking gun. You’re gonna do what the fuck I say.”

PO Baker entered the living room, lifted § 87(2)(b) up by her left arm, brought her to a chair and asked if she was all right. PO Medina and PO Carter returned from the rear of the apartment and approximately three additional officers arrived. These officers remain unidentified. PO Medina told § 87(2)(b) that the officers received a report of a kidnapping, and they looked around the apartment for approximately six minutes for reasons not specified by § 87(2)(b). PO Medina told § 87(2)(b) that her children would be taken away from her if she did not say that she had assaulted a police officer.

Two officers, who remain unidentified, handcuffed § 87(2)(b) and transported her to the 52nd Precinct stationhouse and then to Bronx Central Booking. § 87(2)(b) was charged with

§ 87(2)(b)

§ 87(2)(b) did not seek any medical treatment for the injuries noted above.

Witness: § 87(2)(b)

- § 87(2)(b) § 87(2)(b) at the time of the incident, is a Hispanic male. § 87(2)(g)

There is no additional pedigree information for § 87(2)(b) available.

Telephone Statement

On September 28, 2012, § 87(2)(b) provided a telephone statement to the CCRB (encl. 11). On November 19, 2010, § 87(2)(b) encountered an unidentified female in the hallway of his residence located at § 87(2)(b) in the Bronx. The female informed § 87(2)(b) that she had been held captive inside of § 87(2)(b). § 87(2)(b) brought the female into his girlfriend, § 87(2)(b)'s apartment and called the police. Officers responded and spoke with the female. § 87(2)(b) is not aware of whether the officers entered § 87(2)(b) and he did not observe their interaction with anyone inside of that location.

Witness: § 87(2)(b)

- § 87(2)(b) is a Hispanic female. § 87(2)(b)'s contact information was obtained from § 87(2)(b). There is no additional pedigree information for § 87(2)(b) available. On September 29, 2012, § 87(2)(b) provided a telephone statement to the CCRB (encl. 12). § 87(2)(g)

Witness: § 87(2)(b)

- § 87(2)(b)'s pedigree information is unavailable. § 87(2)(b), § 87(2)(g)

NYPD Statement(s):

Subject Officer: PO FILASTIN SROUR

- PO Filastin Srou, whose name was PO Filastin Abedrabbo at the time of the incident, was § 87(2)(b) old at the time of the incident, and is a white female, 5'4" tall, 125 lbs., with brown hair and brown eyes. On November 19, 2010, PO Srou worked in uniform from 3:00 p.m. until 11:35 p.m. assigned to sector patrol with PO Baker in a marked patrol car.

Memo Book

PO Srou's memo book entries indicate that at 7:30 p.m., she responded to a dispute at § 87(2)(b) in the Bronx. At 9:00 p.m., she went to § 87(2)(b). PO Srou took line of duty leave for a minimum of seven days (encl. 13A-B).

Line of Duty Statement

PO Srou stated that she was lifted off of the floor by § 87(2)(b) and that they both ended up on the floor wrestling with one another. PO Srou sustained an injury to her neck, right shoulder and upper right back (encl. 13C-D).

AIDED Report

PO Srou indicated that she sustained injuries to her right shoulder, upper back and neck while effectuating a lawful arrest (encl. 13E-F).

CCRB Testimony

On March 13, 2012, PO Srou was interviewed at the CCRB (encl. 14A-B).

On November 19, 2010, at approximately 7:38 p.m., PO Srour and PO Baker responded to a report of an assault in progress at § 87(2)(b) in the Bronx. PO Srour and PO Baker entered the building and were met by § 87(2)(b), § 87(2)(f)

§ 87(2)(b)

§ 87(2)(b)

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§ 87(2)(b)

PO Latasha Carter and additional officer(s), whom PO Srour did not recall, but whom the investigation identified as PO Medina, responded. PO Srour knocked on § 87(2)(b) and she heard a gurgling and breathing noise, which she interpreted as someone being choked. PO Srour said, “There are police out here. Open the door.” The choking noise continued and a female voice said, “Just a minute.” § 87(2)(b) opened the door and immediately slapped PO Srour in the face with an open hand. PO Srour suspected this was a distraction so that someone else in the apartment could escape. PO Carter, PO Baker and PO Medina entered the apartment to see if they could find anyone who had been choking or find the male who had allegedly been forcing the girl to have sex. PO Srour did not indicate that PO Medina had pushed § 87(2)(b) when entering the apartment. PO Srour did not strike § 87(2)(b) and she did not grab her neck or restrict her breathing. PO Srour did not punch § 87(2)(b) in the face, jaw or ear. PO Srour grabbed § 87(2)(b) in a failed attempt to get her on the ground. § 87(2)(b) moved her arms around and hit PO Srour in the back, neck, body and face. § 87(2)(b) picked PO Srour up off the floor, slammed her against a wall and then onto the floor. § 87(2)(b) also ended up on the floor. PO Srour did not tell § 87(2)(b) “Shut the fuck up. I’ve got the fucking badge. I’ve got the fucking gun. You’re gonna do what the fuck I say.”

After approximately one minute, officers returned and assisted PO Srour in placing § 87(2)(b) into handcuffs. The officers had only seen a baby inside of the apartment and an open window, which they suspected that the male, who remains unidentified, had escaped through.

Neither PO Srour nor any other officer threatened to call ACS; however, ACS was notified because § 87(2)(b) had placed her child in danger.

PO Srour sought treatment for an injury to her neck and back at § 87(2)(b) immediately after the incident. She received an MRI and was prescribed pain killers. PO Srour took a line of duty leave following the incident and was out at least a minimum of seven days.

Subject Officer: PO JOEL MEDINA

- *PO Joel Medina, § 87(2)(b) old on the date of the incident, is a Hispanic male, with black hair and brown eyes. On November 19, 2010, PO Medina worked in uniform assigned to sector patrol from 4:00 p.m. until 12:35 a.m. the following day. On the date of the incident, PO Medina was assigned to the 52nd Precinct and at the time of his CCRB interview, he was assigned to the World Trade Center command.*

Memo book

PO Medina’s memo book entry indicates that at 7:20 p.m., he arrived at incident location and transported § 87(2)(b) to the stationhouse (encl. 15A-C).

CCRB Testimony

On September 6, 2012, PO Joel Medina was interviewed at the CCRB (encl. 16A-B). PO Medina did not have an independent recollection of the incident and he did not recognize § 87(2)(b) in the photograph shown to him. PO Medina did not recall the details of the incident or whether any force was used against § 87(2)(b). PO Medina did not hear any officers use any profanity when speaking with § 87(2)(b) or hear any officers threaten to call ACS and he did not do so himself. PO Medina agreed that ACS would have to be notified when a child is at a location where the only guardian available is placed under arrest.

Subject Officer: PO LATASHA CARTER

- *PO Latasha Carter, § 87(2)(b) old on the date of the incident, is a black female, 5'4" tall, 146 lbs., with dark brown hair and brown eyes. On November 19, 2010, PO Carter worked from 4:00 p.m. until 12:00 a.m. in uniform with PO Medina assigned to patrol in a marked vehicle.*

Memo Book

PO Carter did not have her memo book with her at the time of her interview because her memo books for the year 2010 have been collected by the Internal Affairs Bureau for an incident unrelated to this CCRB case.

CCRB Testimony

On October 25, 2012, PO Latasha Carter was interviewed at the CCRB (encl. 17A-B). On November 19, 2010, at approximately 7:38 p.m., PO Carter and PO Medina responded to a reported assault of a female in progress at § 87(2)(b) in the Bronx. PO Carter encountered § 87(2)(b) however, she did not recall whether § 87(2)(b) had any visible injuries. PO Carter did not recall whether PO Srouf and PO Baker were present at the time she knocked on the door to § 87(2)(b) or at which point during the incident they had arrived.

§ 87(2)(b) took a long time to answer the door. PO Carter did not recall whether she heard anything from inside of the apartment and she denied that she heard a struggle or choking noises. § 87(2)(b) opened the door, with the door pulled inward and she stood with the door halfway open. § 87(2)(b) was crying and angry; PO Carter determined she was both upset at what occurred in the home and at the officers at her door. PO Carter did not recall whether § 87(2)(b) was asked to enter into the apartment; however, she gave the officers consent in PO Carter's understanding, by opening the door. PO Carter did not recall in which order the officers entered the apartment. PO Carter did not receive any other invitation to enter the apartment other than by § 87(2)(b) opening the door. PO Carter did not recall whether § 87(2)(b) moved away from the doorway to allow the officers inside. PO Carter did not recall § 87(2)(b) telling the officers that they could enter and she did not recall § 87(2)(b) telling the officers they could not enter. The officers entered with the intention of looking for the unidentified male that had been accused of "pimping" § 87(2)(b). PO Carter believed the unidentified male was inside of the apartment at the time the officers arrived based on the statement she received from § 87(2)(b) that the male, who had held her against her will, was still inside of § 87(2)(b). PO Carter did not see PO Medina push § 87(2)(b) in the chest with his hands or elbow and no other officer took that action. PO Carter did not recall whether § 87(2)(b) had slapped PO Srouf upon opening the door or whether PO Srouf placed § 87(2)(b) in a chokehold.

PO Carter entered into a hallway and observed a baby, approximately one year old or younger, in the living room nearby. PO Carter saw a light on in one bedroom in the rear or on the side of the apartment and she entered that bedroom. A window in the bedroom was opened and it led to a

fire escape. PO Carter observed that the ladder to the fire escape was down and she believed that someone had exited from the window. She did not see anyone exit the window or leaving the vicinity of the building. PO Carter did not look through the window.

§ 87(2)(b) cursed at PO Baker and PO Srour inside of the apartment; however, PO Carter was not in their vicinity. PO Carter did not recall what § 87(2)(b) said or how the officers responded. PO Carter did not recall any officer stating, “I’ve got the fucking badge – you’re going to do what the fuck I say” or anything similar. PO Carter exited the bedroom and observed the officers standing in the living room with § 87(2)(b) seated in a chair; PO Carter did not recall whether § 87(2)(b) had been handcuffed. PO Carter did not observe any officers use physical force against § 87(2)(b). PO Carter did not observe any injuries to § 87(2)(b) and § 87(2)(b) did not complain of any injuries to PO Carter.

§ 87(2)(b) indicated that her aunt would provide care for her child; PO Carter did not recall when that was said. PO Carter did not say ACS would be called and she did not recall whether any other officer said so.

Subject Officer: PO RICHARD BAKER

- *PO Richard Baker, § 87(2)(b) old at the time of the incident, is a white male, 6’3” tall, 220 lbs., with brown hair and blue eyes. On November 19, 2010, PO Baker worked from 3:00 p.m. until 11:35 p.m. assigned to patrol in uniform. PO Baker did not recall with whom he was working on the date of the incident and he did not have his memo book with him at the time of his CCRB interview; however, he forwarded a copy to the CCRB immediately following. PO Baker was assigned to the 52nd Precinct on the date of the incident; however, at the time of his CCRB interview, he was assigned to the Borough of Manhattan Narcotics command.*

Memo Book

PO Baker’s memo book entries indicate that at 7:38 p.m., he responded to § 87(2)(b) and at 8:00 p.m., § 87(2)(b) was arrested and PO Baker went on line of duty leave (encl. 18A-B).

CCRB Testimony

On September 15, 2012, PO Richard Baker was interviewed at the CCRB (encl. 19A-B).

On November 19, 2010, at approximately 7:00 p.m., PO Baker responded to § 87(2)(b) in the Bronx. PO Baker entered the building and slipped on a magazine in the lobby, which prevented him from entering § 87(2)(b) with the first responding officers. PO Baker did not recall which officers responded first; however, the investigation identified the officers as PO Srour, PO Medina and PO Carter. PO Baker did not have a clear recollection of the incident. He did not recall a struggle between PO Srour and § 87(2)(b) nor did he recall being told a kidnapping had occurred. § 87(2)(b) screamed and would not allow the officers to enter her apartment. PO Baker did not observe any officer use physical force or any discourteous language toward § 87(2)(b). PO Baker did not state or hear any other officer state that ACS would be notified.

PO Baker left the location upon the conclusion of the incident and went to § 87(2)(b) to be treated for injuries that he sustained when he slipped in the lobby.

Witness Officer: PO REUBEN ANTWI

- *PO Reuben Antwi, § 87(2)(b) old at the time of the incident, is a black male, 6'3" tall, 250 lbs., with black hair and brown eyes. On November 19, 2010, PO Antwi was assigned to a foot post in the 52nd Precinct, alone. On the date of his CCRB interview, PO Antwi was assigned to the 47th Precinct.*

Memo book

PO Antwi's memo book entries indicate that at 7:35 p.m., he made one arrest of an ACS runaway (encl. 20A-C).

Complaint Report

§ 87(2)(a) 160.50
[REDACTED]
[REDACTED]
[REDACTED]

Arrest Report

§ 87(2)(a) 160.50
[REDACTED]
[REDACTED]
[REDACTED]

CCRB Testimony

On May 10, 2012, PO Antwi was interviewed at the CCRB (encl. 21A-B). On November 19, 2010, at approximately 7:38 p.m., PO Antwi received a radio call from Sgt. Kimberly Motto of the 52nd Precinct, instructing him to come to the incident location. When he arrived at the scene, Sgt. Motto briefed him on what had occurred and PO Antwi was assigned the arrest. PO Antwi was not present at the time any of the allegations occurred and he did not receive any additional information regarding what occurred.

Medical Records

Beginning on § 87(2)(b), § 87(2)(b) received medical treatment from § 87(2)(b). In the medical records, there is no indication that § 87(2)(b) reported she had been assaulted by police officers. The triage notes indicate that there was swelling to § 87(2)(b)'s head and neck, but no indication on how she incurred the injuries (encl. 22A-H).

NYPD Document(s)

SPRINT § 87(2)(b)

The SPRINT report indicates that officers assigned to sectors I and G responded to an assault in progress at the § 87(2)(b) in the Bronx. A male perpetrator was reported to have still been inside of § 87(2)(b) in the Bronx. One female, § 87(2)(b) was arrested at the location (encl. 23A-E).

Command Log

The command log indicates that § 87(2)(b) was charged with § 87(2)(b). § 87(2)(b)'s physical and mental condition was indicated to be apparently normal and there is no indication that medical attention was requested (encl. 24).

Roll Call

The roll call indicates that PO Srour and PO Baker were assigned to sectors I,J and K and PO Carter and PO Medina were assigned to sectors G and H (encl. 25A-C).

Status of Civil Proceedings

- § 87(2)(b) has not filed a Notice of Claim with regard to the incident with the City of New York as of October 23, 2012, more than eight months past the expiration of the 90-day filing period (encl. 26).

Civilian(s) Criminal History

- [§ 87(2)(b)] [§§ 86(1)(3)&(4)] [§ 87(2)(c)]

Civilian(s) CCRB History

- This is the first CCRB complaint filed by § 87(2)(b) (encl. 2).

Subject Officer(s) CCRB History

- PO Medina has been a member of the service for 8 years and there are no substantiated CCRB allegations against him (encl. 1A).
- PO Carter has been a member of the service for 6 years and there are no substantiated CCRB allegations against her (encl. 1B).
- PO Srour has been a member of the service for 8 years and there are six substantiated CCRB allegations against her:
 - In case 200500348, a refusal to provide name and shield, unlawfully detained and discourtesy allegation were substantiated against her for which she received instructions (encl. 1C).
 - In case 200508600, a refusal to provide name and shield and discourtesy allegation were substantiated against her for which she received command discipline (encl. 1C).
- PO Baker has been a member of the service for 6 years and there are two substantiated CCRB allegations against him:
 - In case 200802407, a chokehold and discourtesy allegation were substantiated against him for which he received charges (encl. 1D).

Conclusion

Identification of Subject Officer(s)

§ 87(2)(g)

Allegations Not Pleaded

§ 87(2)(g)

Investigative Findings and Recommendations

Allegation A – Abuse of Authority: PO Joel Medina entered § 87(2)(b) in the Bronx.

It is undisputed that PO Medina entered § 87(2)(b) § 87(2)(b) in the Bronx. § 87(2)(b) alleged that PO Medina requested to enter her apartment and before she could respond, he placed his foot on the threshold, pushed past her and entered. PO Medina did not recall the incident and therefore, he could not provide the CCRB with any information regarding what occurred. PO Srour stated she was slapped by § 87(2)(b) when § 87(2)(b) opened the door, and this led her to believe that § 87(2)(b) was creating a diversion to allow someone inside of the apartment to escape. PO Carter was also given the impression that § 87(2)(b) allowed someone to leave the apartment, and stated it was due to the fact that § 87(2)(b) took a long time to answer the door. PO Carter understood that § 87(2)(b) provided implied consent for the officers to enter by finally opening the door.

§ 87(2)(b), § 87(2)(f)

A warrantless entry into one's home to execute an arrest requires exigent circumstances. *People v. McBride*, 14 N.Y.3d 440 (2010) [enclosed AA-AH] enumerates six factors, which while not exhaustive or definitive, can be applied to determine the degree of exigency involved:

- (1) the gravity or violent nature of the offense;
- (2) whether the suspect is reasonably believed to be armed;
- (3) a clear showing of probable cause to believe that the suspect committed the crime;
- (4) strong reason to believe that the suspect is in the premises being entered;
- (5) a likelihood that the suspect will escape if not swiftly apprehended; and
- (6) the peaceful circumstances of the entry.

§ 87(2)(g)

§ 87(2)(g)

Allegation B – Force: PO Filastin Srour used a chokehold against § 87(2)(b)

§ 87(2)(b) alleged that PO Srour grabbed her by the neck and restricted her breathing for a “few seconds.” PO Srour denied that she grabbed § 87(2)(b) by the neck and restricted her breathing. PO Baker and PO Medina did not recall the incident in enough detail to provide any information regarding what happened. § 87(2)(g)

§ 87(2)(g)

Allegation C – Force: PO Filastin Srour used physical force against § 87(2)(b)

§ 87(2)(b) alleged that PO Srour punched her in the left and right sides of her jaw, and in the back of her head, neck and back between 30 to 40 times. § 87(2)(b) indicated the she sustained a lump on the right side of her jaw, a scratch on the right side of her neck, bruising on her back, the back of her neck and shoulders, an injury to a disc in her back and a lump on her back. While § 87(2)(b) alleged that egregious force was used against her by PO Srour and without provocation, § 87(2)(b) s arrest photograph does not depict any apparent injuries to § 87(2)(b) s face and the command log does not list any of the injuries she allegedly sustained. § 87(2)(b) indicated to the CCRB that she received pain medication at Rikers Island as a result of the physical force that was used against her; however, she neglected to inform the CCRB that she had been engaged in a physical altercation with her boyfriend and another female immediately preceding the incident. On § 87(2)(b), § 87(2)(b) reported the above information to the § 87(2)(b). PO Srour stated that § 87(2)(b) slapped her upon opening the door. PO Srour’s statement was corroborated by § 87(2)(b) s arrest report, prepared by PO Antwi, which stated that § 87(2)(b) punched PO Srour in the face and body and stated, “I’m gonna kill you bitch.” PO Carter, PO Medina and PO Baker did not recall any physical altercation between § 87(2)(b) and PO Srour at the time of their interview.

According to Patrol Guide Procedure 203-11, only the amount of force necessary to overcome resistance will be used to effect an arrest (encl. 0F-G).

§ 87(2)(g)

§ 87(2)(g)

Allegation D – Discourtesy: PO Filastin Srour spoke rudely to § 87(2)(b)

§ 87(2)(b) alleged that PO Srour told her, “Shut the fuck up. I’ve got the fucking badge. I’ve got the fucking gun. You’re gonna do what the fuck I say,” when § 87(2)(b) questioned why she was being arrested. PO Srour denied making any of the above statements and she denied using profanity at all during the encounter and her statement was corroborated by the other officers interviewed. § 87(2)(g)

Team: _____

Investigator: _____	_____	_____
Signature	Print	Date

Supervisor: _____	_____	_____
Title/Signature	Print	Date

Reviewer: _____	_____	_____
Title/Signature	Print	Date

Reviewer: _____	_____	_____
Title/Signature	Print	Date